

2.3 Lien Waiver Templates

Four waivers covering every payment situation — conditional or unconditional, progress payment or final. Collect the matching waiver with every cheque you write.

Template for general reference — have your attorney review before use. Not legal advice. Several states prescribe the exact wording of lien waivers; check your state's statute before signing.

CONDITIONAL LIEN WAIVER (Partial Payment)

Project Name: _____

Project Address: _____

Owner Name: _____ Date: _____

Upon receipt of payment in the amount stated under Payment Information below, the undersigned hereby waives and releases any and all lien rights, stop payment notice rights, and bond rights the undersigned has or may have against the above-referenced property for labor, services, equipment, or materials furnished to the property through the through-date stated below.

This waiver is CONDITIONAL upon payment. This waiver and release is void and of no effect unless and until the undersigned actually receives payment in the amount stated above.

Payment Information

Payment Amount (\$): _____ Check Number: _____

Date of Check: _____ Through-Date: _____

Payment Period — From: _____ To: _____

Exceptions

This waiver does not cover:

- Any work, materials, or services provided after the through-date listed above
- Any retention amounts held

Disputed claims for extra work in the amount of \$ _____

Other exceptions: _____

Company / Individual Information

Name of Claimant: _____ Company Name: _____

License Number: _____ Phone: _____

Address: _____

Signature: _____ Date: _____

Print Name: _____ Title: _____

NOTICE: This waiver is **CONDITIONAL**. It becomes effective only when the payment identified below is actually received by the person signing. If that payment is not received, this document waives nothing. To acknowledge a payment already received, use an unconditional waiver instead.

UNCONDITIONAL LIEN WAIVER (Partial Payment)

Project Name: _____

Project Address: _____

Owner Name: _____ Date: _____

The undersigned has been paid and has received progress payment in the amount stated under Payment Information below, and hereby waives and releases any and all lien rights, stop payment notice rights, and bond rights the undersigned has or may have against the above-referenced property for labor, services, equipment, or materials furnished to the property through the through-date stated below.

This waiver is UNCONDITIONAL. This waiver and release is effective immediately upon signing and is not dependent upon receipt of payment.

Payment Information

Payment Amount Received (\$): _____ Check Number: _____

Date Payment Received: _____ Through-Date: _____

Payment Period — From: _____ To: _____

Amount Summary

Total contract amount to date (\$): _____ Previous payments received (\$): _____

This payment amount (\$): _____ Balance remaining (\$): _____

Exceptions

This waiver does not cover:

- Any work, materials, or services provided after the through-date listed above

Retention amounts held in the amount of \$ _____

Disputed claims for extra work in the amount of \$ _____

Other exceptions: _____

Company / Individual Information

Name of Claimant: _____ Company Name: _____

License Number: _____ Phone: _____

Address: _____

Signature: _____ Date: _____

Print Name: _____ Title: _____

WARNING: This document waives rights unconditionally and states that you have been paid for giving up those rights. This document is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional waiver and release form.

CONDITIONAL LIEN WAIVER (Final Payment)

Project Name: _____

Project Address: _____

Owner Name: _____ Date: _____

Upon receipt of FINAL payment in the amount stated under Final Payment Information below, the undersigned hereby waives and releases any and all lien rights, stop payment notice rights, and bond rights the undersigned has or may have against the above-referenced property for all labor, services, equipment, or materials furnished to the property.

This waiver is CONDITIONAL upon receipt of final payment. This waiver and release is void and of no effect unless and until the undersigned actually receives final payment in the amount stated above.

Final Payment Information

Total Contract Amount (\$): _____ Previous Payments Received (\$): _____

Final Payment Amount (\$): _____ Check Number: _____

Date of Check: _____ Retention amount released (\$): _____

Certification

The undersigned certifies that:

- ☐ All work has been completed per contract specifications
- ☐ All materials have been paid for
- ☐ All subcontractors and suppliers have been paid in full
- ☐ All required warranties have been provided to owner
- ☐ All punch list items have been completed

Exceptions**This waiver does not cover (if none, write "NONE")**

Company / Individual Information

Name of Claimant: _____ Company Name: _____

License Number: _____ Phone: _____

Address: _____

Signature: _____ Date: _____

Print Name: _____ Title: _____

NOTICE: This waiver is **CONDITIONAL**. It waives all remaining lien rights only when the **FINAL** payment identified below is actually received by the person signing. If that payment is not received, this document waives nothing. To acknowledge final payment already received, use an unconditional final waiver instead.

UNCONDITIONAL LIEN WAIVER (Final Payment)

Project Name: _____

Project Address: _____

Owner Name: _____ Date: _____

The undersigned has been paid in full and has received FINAL payment in the amount stated under Final Payment Information below, and hereby waives and releases any and all lien rights, stop payment notice rights, and bond rights the undersigned has or may have against the above-referenced property for all labor, services, equipment, or materials furnished to the property.

This waiver is UNCONDITIONAL and FINAL. This waiver and release is effective immediately upon signing and releases all rights to file liens or claims against the property.

Final Payment Information

Total Contract Amount (\$): _____ Total Change Orders (\$): _____

Final Contract Amount (\$): _____ Previous Payments Received (\$): _____

Retention Released (\$): _____ Final Payment Amount (\$): _____

Check Number: _____ Date Payment Received: _____

Final Certification

The undersigned certifies that:

- ☐ All work has been completed per contract specifications
- ☐ All materials have been paid for in full
- ☐ All subcontractors and suppliers have been paid in full
- ☐ All required warranties have been provided to owner
- ☐ All punch list items have been completed
- ☐ Final inspection has been passed
- ☐ No outstanding claims or disputes exist

Exceptions

This is a FINAL waiver with NO exceptions. If any claims remain, do NOT sign this form.

Company / Individual Information

Name of Claimant: _____ Company Name: _____

License Number: _____ Phone: _____

Address: _____

Signature: _____ Date: _____

Print Name: _____ Title: _____

WARNING: This document waives ALL rights unconditionally and states that you have been paid IN FULL for giving up those rights. This document is enforceable against you if you sign it, even if you have not been paid. If you have not been paid in full, use a conditional waiver and release form.